

Court No. - 66

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 36505 of 2024

Applicant :- Kamlesh Yadav

Opposite Party :- State of U.P.

Counsel for Applicant :- Subhash Chandra Yadav

Counsel for Opposite Party :- G.A.

Hon'ble Sameer Jain,J.

1. Heard Sri Subhash Chandra Yadav, learned counsel for the applicant and Sri Manav Chaurasiya, learned AGA for the State-respondent.
2. The instant application has been filed seeking release of the applicant on bail in Case Crime No. 21 of 2015, under Sections 307, 302 IPC, Police Station- Raunapar, District- Azamgarh, during pendency of the trial in the court below.
3. Learned counsel for the applicant submitted that this is the second bail application filed on behalf of the applicant and his first bail application was dismissed on merit on 20.02.2017 by Hon'ble Karuna Nand Bajpayee,J. but as his Lordship has already demitted his office, therefore, this case is listed before this Bench as this Bench is dealing with such matters.
4. He further submitted that he is pressing the instant second bail application on the ground that in the present matter, applicant is in jail since 02.05.2015 i.e. for last almost 10 years and till date, trial of the case could not be concluded. He further submitted that on previous date, a report was called from the court concerned, which is on record and from its perusal, it reflects that in the charge sheet, there are as many as 18 witnesses and till date, only 3 witnesses could be examined, therefore, trial of the case is moving with languid pace and there is no hope of its early disposal.
5. He further submitted that right of speedy trial is the fundamental right of an accused and on its violation, he can be released on bail. He further submitted that as applicant is in jail in the present matter for last almost a decade, therefore, it cannot be said that fundamental right of speedy trial of the applicant has not been infringed.

6. He further submitted that even from the report of the court concerned, which has been submitted pursuant to the order passed by this Court, it could not be reflected that applicant caused delay in trial. He further submitted that applicant is not having any criminal history, therefore, considering the long incarceration of the applicant of about a decade, he should be released on bail.

7. Per contra, learned AGA opposed the prayer for bail and submitted that this is the second bail application filed on behalf of applicant and his first bail application was dismissed after considering the fact that he caused fire-arm injury to the son of brother of his wife but could not dispute the fact that in the present matter, applicant is in jail for last almost 10 years and till date, out of 18 witnesses of the charge sheet, only three witnesses could be examined.

8. He further could not dispute the fact that there is no material on record, on the basis of which it can be infer that applicant is responsible for delay in trial.

9. I have heard learned counsel for the parties and perused the record of the case.

10. However, this is the second bail application filed on behalf of the applicant and his first bail application was dismissed by Hon'ble Karuna Nand Bajpayee,J. but as his Lordship has already demitted his office, therefore, this case is listed before this Bench as this Bench is dealing with such matters.

11. Record further suggests that as per allegation, applicant caused death of son of brother of his wife by causing fire arm injury to him, therefore, allegation levelled against him is quite serious but record also suggests that in the present matter, applicant is in jail since 05.02.2015 i.e. for almost 10 years and till date, trial of the case could not be concluded.

12. Further, from the report of the court concerned, it reflects that in the charge sheet, there are as many as 18 witnesses and till date, only 3 witnesses could be examined, therefore, this Court finds merit in the argument advanced by learned counsel for the applicant that trial of the case is moving with languid pace and there is no hope of its early disposal.

13. Further, from the report of the court concerned, it could not be reflected that applicant caused delay in trial in any manner.

14. Further, as applicant is in jail in the present matter for last almost a decade and there is no evidence on record, which can suggest that applicant caused delay in trial, therefore, it cannot be said that fundamental right of speedy trial of the applicant has not been infringed.

15. Further, applicant is not having any criminal history to his credit.

16. Therefore, considering the facts and circumstances of the case discussed above, particularly the long incarceration of the applicant of almost a decade, in my view, applicant is entitled to be released on bail.

17. Accordingly, without expressing any opinion on the merits of the case, the instant bail application is **allowed**.

18. Let the applicant- **Kamlesh Yadav** be released on bail in the aforesaid case on furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned with the following conditions:-

(i) The applicant shall appear before the trial court on the dates fixed, unless his personal presence is exempted.

(ii) The applicant shall not directly or indirectly, make inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or any police officer or tamper with the evidence.

(iii) The applicant shall not indulge in any criminal and anti-social activity.

19. In case of breach of any of the above condition, the prosecution will be at liberty to move an application before this Court for cancellation of the bail of the applicant.

20. It is clarified that the observations made herein are limited to the facts brought in by the parties pertaining to the disposal of bail application and the said observations shall have no bearing on the merits of the case during trial.

Order Date :- 8.1.2025

KK Patel